

STATE OF NEW YORK

8634--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. LEE, LASHER, McDONALD, SHRESTHA, ROSENTHAL, REYES, COLTON, GALLAGHER, BENDETT, LEVENBERG, RAJKUMAR, SCHIAVONI, BORES, SEAWRIGHT, BRONSON, MORENO, SHIMSKY, WRIGHT, MAGNARELLI, DILAN, E. BROWN -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing maximum contaminant levels and a hazard index in drinking water for certain per- and polyfluoroalkyl substances (PFAS)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1112 of the public health law is amended by adding
2 a new subdivision 12-a to read as follows:

3 12-a. a. The commissioner shall establish a maximum contaminant level
4 of:

5 (i) no higher than 4 parts per trillion (ppt) for perfluorooctane
6 sulfonic acid (PFOS) and perfluorooctanoic acid (PFOA); and

7 (ii) no higher than 10 parts per trillion (ppt) for perfluorononanoic
8 acid (PFNA), perfluorohexane sulfonate (PFHxS), and hexafluoropropylene
9 oxide dimer acid (HFPO-DA, also known as GenX).

10 b. The commissioner shall determine and report to the governor and the
11 legislature by May first, two thousand twenty-eight, what additional
12 requirements, if any, are warranted to address cumulative exposure to
13 multiple per- and polyfluoroalkyl substances, including but not limited
14 to, the substances listed in paragraph a of this subdivision.

15 c. The commissioner shall require that public water systems comply
16 with the requirements of the maximum contaminant levels required by this
17 subdivision by May first, two thousand twenty-nine.

18 § 2. This act shall take effect one year after it shall have become a
19 law. Effective immediately, the addition, amendment and/or repeal of any
20 rule or regulation necessary for the implementation of this act on its
21 effective date are authorized to be made and completed on or before such
22 effective date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD06979-04-6